

**IN THE UNITED STATES DISTRICT COURT  
FOR THE DISTRICT OF COLORADO**

Civil Action No. \_\_\_\_\_

KARYN S. PALGUT

Plaintiff

v.

City of Colorado Springs

Defendant

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**COMPLAINT**

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The Plaintiff, Karyn S. Palgut, alleges the following:

**Jurisdiction**

1. The Court has jurisdiction over the subject matter of this case pursuant to 28 U.S.C. §§ 1331 & 1343; 29 U.S.C. § 626 (c)(1); and 42 U.S.C. § 2000e-5(f)(3).

**Exhaustion of Administrative Remedies**

2. On June 28, 2005, Plaintiff filed a charge of discrimination against Defendant with the EEOC alleging discrimination on the grounds of sex, retaliation, and age.

3. Plaintiff received a Right to Sue letter on March 24, 2006, allowing her 90 days within which to bring an action under Title VII.
4. This action was commenced within that 90 day period.

### **Parties**

5. Karyn S. Palgut is a 43 year old female.
6. The City of Colorado Springs is a home rule city in the State of Colorado.

### **General Allegations**

7. Plaintiff was hired by the City of Colorado Springs on October 4, 2004 as a Firefighter Trainee.
8. The October 2004 Training Academy had 18 recruits - 16 men and two women.
9. The Academy ran 18 weeks, culminating in graduation to Firefighter Fourth Class on February 4, 2005, after the recruits received their Fire Fighter I Certification from the Colorado Metropolitan Certification Board (CMCB). Testing for that exam took place on January 20-21, 2005.

10. On January 4, 2005, an attorney, on behalf of Ms. Palgut, wrote to the City Manager, informing him of his belief that the training instructors were singling her out by imposing on her more rigorous testing standards than others in her class because of her sex.
11. On January 10, 2005, Palgut filed a formal, written complaint of discrimination with the City's Human Resources Department alleging that she was being evaluated more rigorously than men because of her sex. Two days later she amended her complaint by including additional factual allegations that had transpired since drafting her January 10<sup>th</sup> complaint.
12. A week later, on January 18, 2005, Palgut was discharged from her employment with the City by the Fire Chief. The reason given for her dismissal was unsatisfactory performance.
13. Plaintiff's termination came two days before her class tested for the CMCB certification, and two weeks before she would have graduated from the Academy.

14. By February 04, 2005, each of her 17 classmates received their CMCB certification, graduated from training, and were appointed to the position of Firefighter Fourth Class.
15. According to the Civil Service Rules, in effect at the time of Plaintiff's dismissal, the "tenure of every employee in the classified Civil Service shall be dependent on good behavior and efficient service." *Rules of the Colorado Springs Civil Service Commission for the Municipal Police and Fire Forces* § 8.1. (Rules)
18. All "salaried positions of the Fire Department[ ] of the City are divided into the classified and unclassified services." *Id.* at § 2.1. Other than high-ranking officers in the Fire Department, the "classified service shall include all other positions of the Fire [ ] Department[ ] of the City service which are eligible for participation in the Police and Fire pension funds." *Id.*
19. By virtue of her employment with the City Fire Department as a trainee, Palgut was eligible for participation in the Fire and Police Pension Association of

Colorado. Thus, Palgut was employed in the Civil Service classified service.

20. According to the Rules,

The length of the probationary period for entry-level classifications such as . . . Fire Fighter Recruit . . . shall be based upon the amount of time that is necessary to complete any federal/state/local academy, [sic] training, and/or certification requirements.

Upon successful completion of such requirements, the recruit *shall be* appointed . . . to the classification for which the recruit [ ] position was established.

*Id.* at § 7.2.A. (Italics added).

21. Section 7.4, entitled “Dismissal,” provided:

At any time during the probationary period, the [ ] Fire Chief, upon notice to the Secretary, may discharge an employee if, in the [ ] Fire Chief’s opinion, the employee is unable or unwilling to satisfactorily perform the duties of the position held, or that the habits and dependability do not merit continuance in the position.

*Id.* at § 7.4.

22. There are neither contract disclaimers nor statements of at-will employment in the Rules.

23. Under Colorado contract and promissory estoppel law, the Fire Chief's discretion to discharge a trainee was neither unfettered, nor at his pleasure. Rather, the exercise of his discretion to fire was limited by the requirement that it be based on "objectively reasonable" evidence of unsatisfactory performance, or in good faith.
24. Because Plaintiff's tenure as a trainee was legally protected from arbitrary discharge, Plaintiff possessed a property interest in her employment that was protected by the procedural provisions of the Due Process Clause of the Fourteenth Amendment to the United States Constitution.
25. The Rules expressly precluded Palgut from administratively appealing her dismissal. Rules at § 7.7.
26. Had Plaintiff been afforded a post-termination hearing she would have been reinstated with back pay and seniority.
27. Denying Plaintiff a post-termination hearing caused her to suffer mental anguish due to the summary way in which

she was terminated (i.e., not being afforded a post-termination hearing).

28. By dismissing Plaintiff, Defendant prevented her from being certified by the CMCB as Firefighter I, from graduating from the training class, being appointed to the position of Firefighter 4<sup>th</sup> Class, and having a career in the City's Fire Department.
29. The foregoing actions and omissions of Defendant, caused Plaintiff to suffer past and future pecuniary losses, consequential damages, emotional pain, suffering, inconvenience, mental anguish, humiliation, loss of enjoyment of life, and other non-pecuniary losses.

**First Claim For Relief -Discriminatory discharge under Title VII, 2000e-2(a)(1) & (m)**

30. Plaintiff realleges all prior and subsequent paragraphs and incorporates them herein.
31. Plaintiff was qualified to continue her employment as Firefighter Trainee.
32. Despite her qualifications she was discharged from her employment with the City.

33. Her position remained available to her had she not been discharged.

34. Upon information and belief, Palgut's sex was a motivating factor in the decision to terminate her employment.

35. Upon information and belief, the City discharged Palgut because of her sex.

**Second Claim for Relief – Retaliatory discharge under Title VII,  
42 U.S.C. § 2000e-3(a)**

36. Plaintiff realleges all prior and subsequent paragraphs and incorporates them herein.

37. Plaintiff engaged in protected opposition to sex discrimination.

38. Upon information and belief, the City intentionally discharged Palgut because she exercised her rights under Title VII to oppose sex discrimination in her workplace.

**Third Claim for Relief - 42 U.S.C. § 1983**

39. Plaintiff realleges all prior and subsequent paragraphs and incorporates them herein.



40. Plaintiff was denied a post-termination hearing in violation of the Fourteenth Amendment to the United States Constitution.
41. The City's refusal to provide Plaintiff with a post-termination hearing was made pursuant to a policy and custom of the City.
42. As a result of being denied a post-termination hearing, Plaintiff has suffered past and future pecuniary loss, including loss of benefits and seniority, emotional pain, suffering, inconvenience, mental anguish, and loss of enjoyment of life.

**Fourth Claim for Relief - Age Discrimination, 29 U.S.C. § 623(a)**

44. Plaintiff realleges all prior and subsequent paragraphs and incorporates them herein.
45. Plaintiff was over 40 years of age at the time she was discharged.
46. Upon information and belief Plaintiff was terminated because of her age.

47. Defendant's dismissal of Plaintiff because of her age was willful.

WHEREFORE, Plaintiff prays for the following relief, pursuant to 29 U.S.C. § 216 (b) & 626(b); 42 U.S.C. §§ 2000e-5(g) & 1981a; 42 U.S.C. §§ 1983 & 1988; and Fed. R. Civ. P. 54:

- a. Nominal damages;
- b. Reinstatement and back pay, including loss of benefits and seniority, or front pay in lieu of reinstatement;
- c. Pecuniary and compensatory damages, including consequential damages;
- d. Liquidated damages;
- e. Pre- and post-judgment at the highest rate;
- f. Cost and reasonable attorneys fees; and
- f. All other legal or equitable relief to which Plaintiff is entitled.

### **Jury Demand**

Plaintiff requests a jury trial on all matters triable to a jury.

Respectfully submitted this 15th day of June, 2006.

s/ Craig M. Cornish  
Craig M. Cornish  
CORNISH AND DELL'OLIO  
431 N. Cascade Ave., Suite 1  
Colorado Springs, CO 80903  
Telephone: (719) 475-1204  
Fax: (719) 475-1264  
Email: ccornish@cornishanddellolio.com  
Attorneys for Plaintiff

Plaintiff's address:  
1475 Farnham Point, #104  
Colorado Springs, CO 80904